

The parties are expected to strictly comply with their meet-and-confer obligations under the Code of Civil Procedure before any further demurrer is filed. Counsel should also discuss whether targeted informal discovery or document production would satisfy Plaintiff regarding Defendant Rizvi's actual dates of employment and the scope of her personal involvement, if any, in the matters alleged.

14. 9:00 AM CASE NUMBER: C26-00506
CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: WALTERS, JESSE
TENTATIVE RULING:

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

15. 9:00 AM CASE NUMBER: C26-00506
CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS
HEARING IN RE: NOTICE OF SPECIAL APPEARANCE BY CHERI DOVE TO JOIN PETITION TO COMPEL ARBITRATION
FILED BY: CASWELL BAY, INC. DBA HILLENDALE HOME CARE
TENTATIVE RULING:

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

16. 9:00 AM CASE NUMBER: MSC21-00679
CASE NAME: TABERNACLE BAPTIST VS TABERNACLE CHRISTIAN
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: TABERNACLE CHRISTIAN SCHOOLS, INC.
TENTATIVE RULING:

Before the court is Defendant's Motion for Attorneys' Fees and Costs, filed May 7, 2026. The Defendant originally sought \$659,532.50 in attorneys' fees and \$63,579.82 in costs, for a total of \$723,112.32. (Tabernacle Christian Schools, Inc.'s Memorandum of Points in Support of Motion for Attorneys' Fees and Costs, (Motion, page 2:7-8.) The motion is granted with some reductions.

The court grants the Defendant's Request for Judicial Notice as to Exhibits 1-4 only.

The Defendant argues it is entitled to recover reasonable attorneys' fees and costs under the Lease as the prevailing party. Specifically, Defendant argues it is entitled to recover fees under Section 25.04 of the Lease, Section 1021 of the Code of Civil Procedure (CCP), and Section 1717 of the Civil Code. Plaintiff does not oppose this argument in its Opposition.

The Court agrees with the Defendant. The Lease, the law and the fact of Defendant being the prevailing party in the litigation all support an award of reasonable attorneys' fees to the

Defendant. Code of Civil Procedure section 1032 provides the authority for an award of costs to the Defendant.

In its Opposition, Plaintiff argues that the costs are not reasonable and lists numerous reasons for taxing the attorneys' fees and costs prayed for in the moving papers. Opposition to Motion for Attorneys' Fees and Costs (Opposition, filed August 28, 2026.) In Reply, Defendant responded to the Plaintiff's arguments, but conceded a few items. (Tabernacle Christian Schools, Inc.'s Reply in Support of Motion for Attorneys' Fees and Costs (Reply), filed September 3, 2026.)

Plaintiff's arguments in Opposition are not persuasive and are answered by the Defendant's Reply. For example, the Church's own records showing that Attorney McIntosh did far more than merely "attend proceedings." Reply, at 7:9-27. The Plaintiff's own trial brief included the issue of Termite Analysis, arguing that the Defendant ignored demands for two years, and the Plaintiff's own witness testified about the issue at trial. (See Reply, 9:2-8.) The court finds that the expenditure of \$3,950 on Termite Analysis to be reasonable. Similarly, the court finds the expenditure of \$9,975 to prepare for the PMK Depositions of three designated witnesses each on different subjects "across the parties' 27 year relationship" to be reasonable. (See Reply, 9:13-19.) With regard to the Opposition to the Plaintiff's Motion for Summary Judgment/Adjudication, mock trial, trial brief, trial preparation, trial attendance, closing brief, proposed Statement of Decision, oral argument preparation, the court finds the Defendants' time and charges to be reasonable and necessary. The Plaintiff's arguments about double-billing are similarly unpersuasive. Paralegals and the services of an outside copying company, in this case, Quivx, are both needed to prepare and copy documents for attorneys' use.

Defendant conceded the striking of **\$15,290** comprised of:

- [1] **\$2,450**: the vaccine / mask audit and insurance research entries at Opposition 8:5-10.
- [2] **\$2,460**: work relating to the School's line of credit, promissory note and memorandum of lease matters,
- [3] **\$680**: two entries for Karen Seto for 8/13/21 non-profit status (\$200) and 5/23/22 for billing records written off (\$480)
- [4] **\$9,700**: ten Seto entries for work marked "Written Off" in billing system and not billed to school.

Reply, at 16:15-26.

After consideration of the papers and exhibits submitted to the Court, the Court agrees with the Defendant that the attorneys' fees and costs requested (minus the \$15,290) are reasonable and necessary expenses. The attorneys' and other professionals' hourly fees are well within the range for attorneys with the stated number of years' experience and expertise in Contra Costa County, and at the low end of the scale if one considers nearby Counties such as San Francisco or Santa Clara. The lead partner and main litigation attorneys on the case each have 32 years of experience

as lawyers. One of them, Mr. McIntosh, generously billed his time at 50% of his normal rate. (Declaration of Stephen Seto in Support of Tabernacle Christian Schools, Inc.'s Motion for Attorneys' Fees and Costs, (Seto Decl.) filed May 7, 2026, at ¶ 7.) The total number of hours spent, as reflected in the table below, given the scope of the litigation that was mounted in this case, is reasonable.

Timekeeper	Role	Admitted	Hours	Avg. Rate	Total
Stephen C. Seto	Partner / Lead trial counsel	1994	1,150.70	\$498.84	\$574,820.00
Bruce McIntosh	Co-counsel	1994	238.00	\$254.20	\$60,500.00
Karen B. Seto	Of Counsel	1994	11.90	\$485.71	\$5,780.00
Steven Wood	Partner	1992	8.00	\$475.00	\$3,800.00
Kelly M. Seto	Associate	2025	95.20	\$137.50 ¹	\$12,780.00
Luke Wood	Paralegal	—	24.70	\$75.00	\$1,852.50
TOTALS			1,528.50	\$431.46	\$659,532.50

(Table from Seto Decl., at 2:17-25.)

It is important to note the court finds no basis for the Plaintiff's across the board 50% reduction in fees and **denies** that request. Defendant prevailed on all claims.

The court awards Defendant the amount of **\$644,242.50** in attorneys' fees and **\$63,579.82** in costs and litigation expenses for a total of **\$707,822.32**, together with reasonable fees and costs incurred in preparing this motion.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-02059
CASE NAME: DEREK HOCKETT VS. CHRISTINA GARCIA JIMENEZ
***HEARING ON MOTION FOR DISCOVERY DEEM AS ADMITTED DEFENDANTS' REQUEST FOR**
ADMISSION, SET ONE TO PLAINTIFF DEREK L. HOCKETT
FILED BY: GARCIA JIMENEZ, CHRISTINA B.
TENTATIVE RULING:

The Defendants' unopposed motion for an order Deeming Admitted all Requests for Admissions contained in Defendants' Request for Admissions, Set One, to Plaintiff DEREK L. HOCKETT is **granted**.

Defendants shall serve notice of entry of this Order on Plaintiff within 5 court days of this order.